

TENTATIVE RULINGS for LAW and MOTION
June 12, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Two

(530) 406-6787

TENTATIVE RULING

Case: **Chang v. Ferrian**
 Case No. CV2026-1435

Hearing Date: **June 12, 2026** **Department Two** **1:30 p.m.**

Defendant Janet Ferrian’s demurrer to plaintiff Eugene Chang DBA SDLD Associates’ complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The three-day notice to pay rent or quit failed to state that Saturdays and Sundays and other judicial holidays were excluded from defendant’s three-day deadline to either pay rent or surrender possession of the premises. (Code Civ. Proc., § 1161, subd. (2); Complaint, ¶ 9(e), Exhibit 2.) As plaintiff did not strictly comply with this statutory requirement, they cannot maintain the unlawful detainer action against defendant. (*Kwok v. Bergren* (1982) 130 Cal.App.3d 596, 599–600.)

Defendant’s request to dismiss plaintiff’s complaint is **GRANTED**. (Code Civ. Proc., § 581, subd. (f)(1).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.